

HOUSE No. 4760

The Commonwealth of Massachusetts

HOUSE OF REPRESENTATIVES, November 19, 2025.

The committee on Election Laws, to whom was referred the petition (accompanied by bill, House, No. 820) of Kate Donaghue, Frank A. Moran and others for legislation to ensure access to polling places for voters with disabilities, reports recommending that the accompanying bill (House, No. 4760) ought to pass.

For the committee,

DANIEL J. HUNT.

HOUSE No. 4760

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act enforcing accessibility for voters with disabilities.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Chapter 54 of the General Laws is hereby amended by inserting after section 24 the
2 following section:-

3 Section 24A. Accessibility for Voters with Disabilities

4 (a) Polling Place and Early Voting Site Inspections To ensure compliance with federal
5 and state laws concerning accessibility for voters with disabilities, including the State Secretary's
6 polling place accessibility regulations, an agent of the State Secretary shall inspect, at least once
7 every four (4) years, each polling place designated under section 24 and each early voting site
8 designated under subsection (b) of section 25B. These inspections shall evaluate compliance
9 with all applicable federal and state accessibility standards. The inspecting agent shall promptly
10 report in writing to the State Secretary and the city or town clerk any identified failures to
11 comply with state and federal accessibility laws. The report shall clearly specify the nature of the
12 non-compliance, including any deficiencies or barriers that impede access for voters with
13 disabilities.

(c) Immediate Action to Ensure Access Upon receipt of the report, the responsible officials of the city or town shall take immediate action to ensure access for voters with disabilities. "Immediate action" shall mean corrective measures taken within 48 hours, which may include temporary measures such as providing accessible entrances, signage, or parking. These actions should aim to provide access as quickly as possible, pending permanent solutions.

(d) Compliance Plan Submission Within a reasonable period following the report, the responsible city or town officials shall submit to the State Secretary a written compliance plan. The plan must outline specific corrective actions, including any temporary or permanent measures, and a timeline for full compliance with federal and state accessibility laws. The plan should reference the minimum compliance standards as outlined in the regulations issued by the State Secretary.

(e) Failure to Take Action or Submit Plan If the city or town fails to take immediate action or to submit a written compliance plan, the State Secretary may issue an order directing the city or town to comply with the law. The State Secretary may also impose any penalties for non-compliance as authorized under applicable state law.

(f) Minimum Compliance Standards and State Secretary's Regulations The State Secretary shall promulgate regulations that define the minimum compliance standards for polling places and early voting sites. These regulations shall outline specific accessibility requirements and corrective actions, including temporary measures, to ensure compliance with federal and state accessibility laws. The regulations shall reference relevant federal standards, including the Americans with Disabilities Act (ADA), and provide a framework for local officials to follow in ensuring accessibility at polling places.

(g) Annual Report Not later than December 31 of each year, the State Secretary shall report in writing to the clerks of the Senate and House of Representatives on all activities under this section. The report shall include a summary of inspections, identified failures to comply, corrective actions taken, and any outstanding issues or areas of non-compliance that remain unresolved.

(h) Enforcement The Attorney General may bring a civil action in the Superior Court to enforce compliance with accessibility laws, the written compliance plan, or the State Secretary's order. These actions shall not limit the availability of judicial remedies to any person, official, commission, or board.